

## *Epilogue: Latin America's Reactive Assemblies and Proactive Presidents\**

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The chapters in this book have shown that, although the Latin American legislatures are only reactive, they are not dysfunctional. Since they are reactive bodies, it is important to consider the force to which they are reacting, namely, the president. It is clear that at times this opposing force has dominated Latin American politics, but frequently the presidents do make policy concessions as a part of their overall strategy for getting their way. Even if one continues to view the president as the central actor in the civilian–political universe, his anticipation of a (possible) legislative veto should in theory condition most of his actions. The optimal strategy for even the most autocratically minded president is not to pretend that the legislature does not exist and propose whatever policies he likes, then react spasmodically when the legislature refuses its assent. Rather, the “cheapest” strategy will often be to cobble together as many legislative votes as possible purely on the merits, conserving other assets (such as pork and patronage) for securing any necessary marginal votes.

Our goal is to theorize within a rational choice framework about how Latin American legislatures operate when they are in the policy-bargaining mode, as opposed to the supine, venal, or horrified-onlooker modes. Our discussion revolves around three themes. First, the venerable “rule of anticipated reactions” makes even primarily reactive institutions, such as Latin American legislatures, relevant. Second, to the extent that Latin American presidents are continually anticipating legislative reactions, their strategies will vary depending on the type of legislature that they face. Third, the ordinary (noncrisis) policy-making process in Latin America is a distinctive form of a bilateral veto game, which in many ways

\* A modified version of this chapter appeared in *Comparative Politics* (2001).

## Epilogue

exhibits features intermediate between those characteristics of U.S. presidentialism and European parliamentarism. In developing these themes, we draw on the cases discussed throughout this book: Argentina, Brazil, Chile, and Mexico.

### *Anticipated Reactions and the Influence of Latin American Legislatures*

Carl Friedrich's "law of anticipated reactions" expresses the simple idea that if X's actions will be subject to review by Y, with Y capable of rewarding good actions and/or punishing bad ones, then X will likely anticipate and consider what it is that Y wants (Friedrich 1963). In the end, X may not accommodate Y's desires. That depends on how large Y's potential rewards and punishments are relative to other considerations in X's decision. But Y will at least be considered.

A straightforward application of this idea suggests that an important role in the legislative process does not always require "proactive powers" – the ability to initiate legislation and set the agenda. It should also stem from the ability to shape or kill executive proposals. These "reactive powers," which seem to characterize the Latin American cases, invite anticipation by the president (Mainwaring and Shugart 1997).<sup>1</sup> If he finds it costly to dispense enough pork to buy every vote, or enough patronage to buy every legislator, or enough money to buy the election; and if it is also costly to rule by decree; then even authoritarian presidents should consider cutting a deal with the assembly.

We believe that there is evidence that Latin America's assemblies influence the policy process substantially – because the president sometimes attempts to rule through the legislature, rather than around it. This point is clearest in Chile, and it will be developed at greater length when we consider our following third theme. For now, it will suffice to note some examples from two countries where presidential anticipation and accommodation of legislative preferences might seem unlikely: Brazil and Mexico.

Brazil has gained fame for its decree-wielding presidents. Ames, however, makes clear that the legislature is instrumental in shaping the

<sup>1</sup> Mainwaring and Shugart (1997) discuss proactive and reactive presidencies. They focus on presidential types, but they also discuss legislative support for the president and the likely relationship between the two branches.

president's agenda. His extensive survey finds that almost no major proposal goes through Congress unchanged, and that many are rejected.

As regards Mexico, it is clear that the legislature made virtually no attempt prior to 1997 to legislate on its own, and it was not much more active in terms of modifying, much less rejecting, presidential proposals. The formal powers of the legislature did not change, but its political status changed considerably. As a consequence, the post-1997 legislature has rearranged its leadership structure (see the chapter by Nacif) and it has had an important hand in shaping the banking insurance law (FOBAPROA), the relationship with the Zapatista rebels, and even the president's "secret" discretionary budget. Perhaps most strikingly, in the budget adopted in December of 1997, legislative pressure led to a rough doubling of the funds earmarked for transfer to state and local governments.

### ***Reactive Legislatures and Proactive Presidents: Latin American Variations on the Theme***

In the remainder of this chapter we will focus on the broad category of reactive legislatures and the subcategories defined in the previous chapter. Our starting point is simply to note that assemblies and presidents in Latin America are engaged in one or another of a distinctive subfamily of bilateral veto games. In games of this subfamily the policy process is asymmetric, in that (for the most part) only the president proposes. The sequence of moves in the statutory process is typically as follows:

- (1) The president proposes one or more new policies (bills).
- (2) The legislature either accepts, amends, or rejects the president's proposals.
- (3) If the legislature amends or rejects (some of) his proposals, the president can either bargain, take unilateral action, or seek to undermine the assembly's ability to veto proposals.

By bargaining we mean that the president makes actual concessions in proposed policies in order to gain legislative acquiescence or "buys" votes with pork and patronage. By unilateral action we mean that the president emits decrees, uses the rule-making authority of the bureaucracy, or uses other unilateral powers to implement as many of his desired policies as possible. By undermining the assembly's independence we mean that the president

## Epilogue

seeks to win the next legislative election (by fair or foul means), control the career paths of assembly members, and so forth.

In the previous chapter Morgenstern discussed the set of variables that determine whether the majority in the legislature will tend toward one of four types: recalcitrant, workable, parochial-venal, or subservient. Although he also argued that legislatures seldom fit tightly into these ideal types, in what follows we shall simplify matters by imagining that the president anticipates one of these four legislative types and pursues a strategy that is optimal in light of such a legislature's likely responses to his initiatives. Recalcitrant majorities (very low percentages of members supporting the president) will reject essentially all of the proposals that the president really wants. Subservient majorities (very high percentages of members thoroughly beholden to the president) will accept essentially any proposal that the president makes. Between these extremes of support, the president can face two types of more manageable majorities, one that demands a seat at the policy table (workable) and the other that is willing to concede policy issues in exchange for access to pork or other resources (parochial-venal). Depending on which sort of assembly the president anticipates, he or she will undertake different strategies and use different institutional powers to implement those strategies. That is, strategy and tactics will oscillate with legislative type.

The previous chapter concluded that a legislature's type is a function of the Constitution, reelection drives of the legislators, the party system, and other factors. Aside from the Constitution (which is perhaps a less important ingredient), most of the other factors boil into the percentage of the legislature's seats occupied by members supporting the president. This implies that, in addition to the raw number of seats, a president takes account of the level of unity within the majority party or coalition. One additional factor that the president will notice is the percentage of legislators who pursue parochial over national interests (who see their careers as continuing at a local level and their duties as primarily the protection of local prerogatives). We view these variables as exogenous or pre-determined factors that the president cannot change in the short term but which materially affect the legislature's likely response to presidential initiatives. We do not wish to say that once a legislature is elected and these two percentages are fixed that the legislature never varies its strategy. But here we will take the legislature's type as a good enough clue to its likely strategy for presidents to act as "Stackleberg leaders" –

initiating legislation with a clear notion of, and in light of, the legislature's likely response.<sup>2</sup>

### *The Central Oscillation*

In this section we explore the president's changing use of his constitutional and other powers, in response to changes in anticipated assembly support: the central oscillation in Latin American politics. Latin American executives typically have greater powers of unilateral action than U.S. presidents. They cannot dissolve the Congress, but they resemble European prime ministers as regards executive penetration of the legislative process within the assembly. They thus occupy an intermediate position between these two ideal types. As Mustapic argues for Argentina, this distinctive combination of institutional strengths, along two separate dimensions, leads to a distinctive "oscillation" in presidential strategy in response to variations in assembly types. In the following we consider first the president's changing use of "unilateral" powers and then the changing use of "integrative" powers.

***Changing Use of Unilateral Powers*** One way in which presidents change their strategies has to do with their unilateral powers. By unilateral powers we mean something close to what Carey and Shugart mean by proactive powers: those powers that can be used (a) without the concurrence of the legislature to (b) change policy (Carey and Shugart 1998). The clearest examples are constitutional decrees, but other sorts of decrees, regulatory rule making, and even vetoes<sup>3</sup> can sometimes feature in pushing through a new policy.

The main point to make about presidential use of unilateral powers is just this: As numerous chapters in this book attest, when the president is politically weaker, he typically resorts more frequently to his unilateral powers; in contrast, when he is politically stronger, he resorts to these powers less often (Amorim Neto 1998; Cox and Kernell 1991; Tiefer 1994).

<sup>2</sup> A Stackleberg equilibria is a game-theoretic concept taken from the study of duopolies, in which after the leading firm moves, the other firm reacts in full knowledge of the first firm's move (see Fudenberg and Tirole 1991).

<sup>3</sup> In Argentina, for example, presidents can emit decrees that the Congress can only overturn with statutory proposals, those proposals themselves subject to the usual veto process.

## Epilogue

This point can be illustrated by comparing the experiences of presidents in the four countries discussed in this book. In Brazil, politically weak presidents, such as Collor, have pushed the limits of the constitutional powers. Menem had the putative support of the largest single party in the Argentine system, but having reversed the field on several key issues, he could not rely on consistent support (see the chapter by Eaton). As Mustapic shows, Menem too ended up pushing the limits of his constitutionally defined powers, seeking only enough support in the assembly to prevent the override of his decrees. Frei, with a workable majority in Chile's lower House and a large minority in the upper House, avoided controversial use of his substantial unilateral powers (see the chapter by Siavelis). Finally, as Weldon and Casar explain, during the long-lasting period of PRI dominance, Mexican presidents did not have to rely on unilateral powers because they derived power from "metaconstitutional" sources. President Salinas, for example, presiding over the last years of the one-party regime, could get whatever statutes he wanted – as soon as the ducks were lined up within the PRI – and so did not need executive decrees (which are not even included in the Mexican Constitution), vetoes, or other unilateral tools used by presidents in more competitive systems. Everything could happen off-stage, with the formal procedures a pro forma ratification of decisions made elsewhere.

The logic behind this declining use of formal constitutional powers as the president's legislative support increases can be indicated by considering presidential strategy at three levels of assembly support: weak (the president faces a hostile majority in the assembly), medium (the president has a workable majority), and strong (the president has a large and subservient majority). When the president faces a hostile majority in the assembly, he will often have no chance of implementing his policy goals via statutes. In these cases, his only recourse will be to take such unilateral action as he can manage, perhaps "pushing the envelope" of his powers in constitutionally provocative ways. When the president has a workable majority in the assembly, in contrast, he may be able to get his statutes passed with the aid of urgency provisions, the judicious allocation of cabinet positions to solidify legislative support, and a liberal distribution of pork. Since statutes can override conflicting decrees, are harder to overturn once enacted, and are constitutionally sounder instruments for many purposes, politically stronger presidents will more often prefer trying for statutes than issuing decrees. Finally, some presidents – e.g., those in Taiwan and Mexico until recently – may be able to count on a large and

subservient majority in the assembly. These presidents – who typically appear only in authoritarian regimes for any extended length of time – can routinely expect to get just the statutes that they want and hence have no political need to employ vetoes or decrees. They may occasionally find it convenient to use decrees or administrative rule-making powers rather than statutes, but they are not usually constrained in this choice by any lack of support in the assembly. The separation of powers has been overridden, so to speak, by the president's political strength (usually based on his ability to control candidate selection and elections to the assembly, the distribution of pork to members of the assembly, and the post-assembly career prospects of sitting legislators).

***Changing Use of Integrative Powers*** Latin American presidents are not confined to unilateral powers. They also deploy powers, such as urgency decrees or the appointment of ministers, that can help the president to integrate himself into the legislative process of the assembly. As explained further in the following pages, integrative powers allow the president to set the policy agenda not just by sending proposals to Congress, but also by prioritizing bills in the internal procedures of Congress or empowering assembly allies. Use of potentially integrative powers for actually integrative purposes responds to variations in presidential support in the assembly in precisely the opposite pattern to that noted previously for unilateral powers: They are used more when the president is politically stronger and less when he is politically weaker. As this dimension of Latin American presidential power has received less attention in the previous literature, we expand on this topic in the following sections.

***Evidence that Use of Powers Does Vary with Assembly Support*** Evidence that Latin American presidents do vary their strategy in response to their prospects of support in the assembly and their institutional powers can be culled from the wealth of case studies in the Latin American literature. The best currently available systematic evidence is provided by Amorim Neto (1998), in a study of 75 cabinets appointed by 57 Latin American presidents from 10 countries over the period 1946–1995. The logic of Amorim Neto's study is that presidents who have decided to implement their policy goals via statutes will lay the groundwork for this by appointing party leaders who can help to solidify assembly support. In contrast, those who seek to rule by decree can pack their cabinets with cronies and technocrats. Amorim Neto finds, among other things, that the percentage

## Epilogue

of partisan ministers in a president's cabinet increases: (1) as the percentage of seats held by the president's party in the assembly increases; and (2) as the president's decree powers decline. In other words, presidents with a better political base in the assembly, and with poorer institutional powers to pursue a unilateral strategy, are more likely to seek to govern through, rather than around, the assembly.

*A Typology of Presidents and Assemblies* In sum, a president's level of support in the assembly will have a large impact on his or her overall policy-making strategy – whether to seek a mostly statutory implementation of goals (governing through the assembly) or to seek a mostly nonstatutory implementation (governing around the assembly). This overarching strategic decision about the optimal mix of statutory and nonstatutory effort in turn influences presidential tactics – which powers to use and how to use them. These tactics are also influenced by the president's institutional powers, and thus, even for presidents in similar circumstances, the tactics could reveal presidents who range from impotent to imperial, as a comparison between Collor and Mitterand might show.

To encapsulate the gist of how presidents' strategies and tactics change with their anticipated level of assembly support, we employ the four adjectives discussed in the previous chapter and above that characterize the Latin American (and North American) legislatures: recalcitrant, workable, venal-parochial, and subservient. The president has a rather clear best response to each of these types, and thus we match the four legislative adjectives with four presidential adjectives. First, if the president believes that the assembly is recalcitrant – i.e., will reject most of his proposals and refuse to compromise – then (assuming he has unilateral powers at his disposal) his best strategy is to seek ways of getting around the assembly veto, by using his unilateral powers: This is the *imperial* president. (If he lacks such powers, he would be impotent.) At the other end of the scale, where the president believes that the assembly is subservient – i.e., will accept most of his proposals without the need of bargaining – then his best strategy is to dictate terms: This is the *dominant* president.

The third and fourth types of presidents face workable majorities and they bargain with legislative actors over the course of policy. The dividing line between these two types is what the presidents offer the legislators in return for their support. The type is therefore a function of how frequently the president uses four key bargaining chips: (1)

particularistic payoffs (pork and patronage); (2) positional payoffs (ministerial portfolios); (3) policy concessions; and (4) agenda-setting.

Where the president finds that his best response to a particular legislature is to buy support with pork and patronage, he is facing a venal or parochial assembly. These legislatures, maybe due to short legislative time horizons (i.e., low reelection rates) or career paths that reflect their pork-winning success, prefer the president to play a *nationally oriented* role, focusing on and taking the heat for national policy (Shugart 1998). Thus, in return for particularistic payoffs, we expect these legislatures to offer (in a manner that is probably closer to abdication than delegation) the president broad authority over policy through grants of decree powers, and to sponsor few important initiatives.

We have termed assemblies that are involved in the policy process – in the sense that (1) the president heads a coalition that includes assembly actors, (2) seeks to implement *coalitional* policies via statutes, and (3) designs the strategy for getting these statutes passed in consultation with his assembly allies – workable. Their foil, the coalitional president, may use some particularistic payoffs to clinch deals, but pork will be used to get the last few votes needed to clinch deals, not as the main bargaining technique. The coalitional president thus makes more extensive use of his other three bargaining chips, all of which involve the assembly more intimately in actual policy decision making. Clearly policy concessions bring the assembly into the policy process, but so do the allocation of ministerial portfolios to party leaders (these positions do not carry with them influence over pork alone) and the setting of the legislative agenda (which the president has influence over but can more effectively control with the help of assembly actors).

The four corresponding pairs of executive–legislative types – imperial-recalcitrant, nationally oriented-parochial, coalitional-workable, and dominant-subservient – are displayed in Table 15.1.<sup>4</sup> Every imperial president has a recalcitrant congress as his antagonist, whose actual or anticipated refusal to support his statutory initiatives drives him to use his unilateral powers. Every dominant president has a subservient congress that meekly acquiesces to most of his policies (typically because the president has previously established political dominance over the congress by control of nominations, elections, or post-assembly career options). And, finally, if the president believes that the assembly is workable – i.e.,

<sup>4</sup> We have excluded the impotent president here.

Epilogue

Table 15.1. *Presidential and assembly strategies.*

| Assembly Strategies     |                             |                                           |                                          |                                                            |
|-------------------------|-----------------------------|-------------------------------------------|------------------------------------------|------------------------------------------------------------|
| Presidential Strategies |                             | Reject                                    | Bargain                                  | Demand payments                                            |
|                         | Undertake unilateral action | Imperial president, Recalcitrant assembly |                                          |                                                            |
|                         | Bargain                     |                                           | Coalitional president, workable assembly |                                                            |
|                         | Pay Off                     |                                           |                                          | Nationally-oriented president, venal or parochial assembly |
|                         | Dictate                     |                                           |                                          | Dominant president, subservient assembly                   |

can be bargained with – then his best strategy depends on what bargaining mechanisms are most propitious. If he is better off using his integrative powers to work through the statutory process, he is a coalitional president. If, on the other hand, legislators are mostly after pork and the president can “buy” their support for his policies, then we call the president nationally oriented.<sup>5</sup>

<sup>5</sup> The preceding account was written to suggest optimal strategies and responses given certain pure types of legislatures and presidents. To specify the equilibria, we would have to take into account such variables as the varying range of unilateral and integrative powers available to the president, presidential preferences for quick action versus interbranch bargaining, how the party system affects the ability and willingness of the legislature to bargain, and the legislature’s constitutional endowments of power (Mainwaring and Shugart 1997). Also, legislators do have varying interests across policy issues. For example, while Allende faced a consistently recalcitrant legislature and thus played a single strategy during his whole (shortened) term, other presidents face legislatures that are less consistently recalcitrant and vary their strategies accordingly.

*The Amplitude of Oscillation*

What distinguishes Latin American presidential systems from the U.S. model is not the existence of an oscillation in presidential strategy and tactics of the sort described previously, but rather its amplitude. Most Latin American presidents have greater powers of unilateral action than their American counterpart, greater ability to “penetrate” the internal legislative process of the assembly, and more variable political support. This combination of more variable legislative support with institutionally stronger presidencies (along two dimensions) has meant that many Latin American presidencies are outside the relatively narrow range of experience in the United States.

In the remainder of this section we discuss in greater detail the three key elements that jointly produce a greater amplitude of oscillation in the modality of presidential action in Latin America. The amplitude of oscillation is certainly greater in Latin America if one includes the cross-national variation – in which case one can range from the dominant presidencies of Mexico to the coalitional presidencies of Uruguay or Chile to the imperial presidencies of Argentina, Brazil, or Peru. We mean to assert also that the amplitude of oscillation is larger within many of these systems. Thus, for example, Allende pushed further in the imperial direction than did Nixon or Reagan, while Aylwin and Frei have pushed further in the coalitional direction than did Wilson.

Outside of Mexico, the oscillation throughout the Western hemisphere is mostly between imperial and coalitional presidencies, and so we shall focus on these types. We begin with the greater variability of presidential support in the assembly, the “engine” that drives variations in presidential strategy. We then consider the two sorts of institutional constraints discussed previously, those having to do with the president’s powers to penetrate the internal legislative process of the assembly, and those that affect his or her powers to act unilaterally.

***Variability in Presidential Support*** Some indication that Latin American presidents do experience greater variability in assembly support than their North American counterparts is given in Table 15.2. The table is based mostly on Deheza’s attempt to identify the coalitions supporting each president in a number of Latin American countries (Deheza 1997). Although one might have qualms about her numbers in particular

Table 15.2. *Variability of presidential support in the assembly, 1950s–1990s.*

| Country       | Average support for president ( <i>N</i> of periods) | Standard deviation of support for president | Minimum support for president in lower House | Maximum support for president in lower House |
|---------------|------------------------------------------------------|---------------------------------------------|----------------------------------------------|----------------------------------------------|
| Argentina     | 50.64 (15)                                           | 8.56                                        | 35.9 (Illia)                                 | 71.1 (Frondisi)                              |
| Bolivia       | 49.60 (14)                                           | 21.43                                       | 22.3 (Siles Z)                               | 85.9 (Paz E.)                                |
| Brazil        | 69.10 (15)                                           | 17.40                                       | 33.0 (Collor)                                | 92.7 (Quadros)                               |
| Chile         | 42.35 (14)                                           | 11.87                                       | 15.6 (Frei)                                  | 58.7 (Frei)                                  |
| Colombia      | 72.33 (15)                                           | 16.95                                       | 49.2 (Barco)                                 | 99.4 (Betancur)                              |
| Ecuador       | 32.10 (16)                                           | 16.18                                       | 01.4 (Hurtado)                               | 52.0 (Arosmena)                              |
| France*       | 55.5 (8)                                             | 10.31                                       | 38.0 (Mitterand)                             | 74.0 (Pompidou)                              |
| Peru          | 41.37 (7)                                            | 16.71                                       | 17.7 (Fujimori)                              | 60.3 (Belaunde)                              |
| United States | 50.66 (27)                                           | 9.92                                        | 36.3 (Reagan)                                | 67.8 (Johnson)                               |
| Uruguay       | 56.90 (7)                                            | 14.74                                       | 41.4 (Sanguinetti)                           | 80.3 (Bordaberri)                            |
| Venezuela     | 53.71 (13)                                           | 23.18                                       | 12.6 (Caldera)                               | 95.7 (Pérez)                                 |

Source: Deheza (1997), Statistical Abstract of the US (1997), and historical statistics.

cases,<sup>6</sup> her work appears to be the best and most systematic available. As can be seen, in six of the nine Latin American countries covered in the table, the maximum assembly support for the president (observed over the period from the 1950s to the 1990s) is greater than the U.S. maximum; in seven of the nine cases, the minimum support is less than the U.S. minimum; and in eight of the nine cases, the standard deviation of presidential support in the assembly is greater than the U.S. figure. Thus, in most Latin American countries, presidential support in the assembly varies more widely than it does in the United States.

In terms of Table 15.1, what this means is that the Latin American cases vary more widely across the columns of the table. Thus, there are more cases of potentially dominant presidents (with particularly subservient legislatures) and more cases of potentially imperial presidents (facing particularly

<sup>6</sup> For example, Betancur's 99% level correctly implies that both primary parties gave some support to the president, but ignores the lack of party discipline and the intense interparty rivalry (Betancur won only 47% of the vote). Similarly, the 41% support of Sanguinetti overestimates his support, as factions in his party frequently withheld support. Her numbers do lend weight to our hypothesis of shifting powers, however, as she breaks presidencies into periods, showing changing levels of support for the same president.

recalcitrant assemblies). Whether these potential cases turn into the real thing depends both on the solidity of the nominal support levels reported by Deheza and on the institutional powers of the presidency in each case.

***Executive Integration in the Legislative Process of the Assembly*** In parliamentary systems, the executive is deeply involved in the internal legislative process of the legislature. Simultaneous occupancy of ministerial and legislative offices is typically allowed. Even when it is not, ministers often appear personally in the legislature, participate in debate, answer questions, and so forth. Ministers also typically have superior abilities to set the legislative agenda of the assembly itself. In the United Kingdom, for example, only ministers can propose tax increases and the cabinet dominates the legislative agenda through such powers as the vote of confidence and the guillotine procedure.

These two factors – executive participation in, and executive agenda power over, the legislative process of the assembly – together indicate what we shall call the degree of executive integration in the legislative process. We shall discuss each in turn, contrasting the United States and the modal Latin American case.

The U.S. president cannot appoint a sitting member of Congress to his cabinet, unless that person chooses to relinquish his or her seat in Congress, because the Constitution (Article I, section 6) forbids the simultaneous occupancy of cabinet and legislative office. Although cabinet ministers in the United States do give testimony in congressional hearings, by custom they do not participate in debates.<sup>7</sup> These restrictions mean that executive personnel are not personally involved in the legislative process within Congress. They also make it difficult for a U.S. president to use cabinet appointments to build legislative support, as is routinely done in parliamentary systems.

In some Latin American cases, simultaneous occupancy of cabinet and legislative offices is not prohibited (e.g., under the Peruvian Constitution

<sup>7</sup> Even the one executive officer who has a constitutional mandate to participate in legislative affairs – the vice president (ex officio presiding officer of the senate) – is limited in his ability to participate. By constitutional prescription, the vice president can cast a vote only in the event of a tie and partly for this reason he rarely appears in the Chamber. Even when he does appear, however, the Senate has a long-standing custom that physically confines him to the dais. When Vice President Spiro Agnew unwittingly violated this rule, the Senate expressed its displeasure at this violation of the separation of powers by passing a resolution specifically enforcing this restriction on Agnew's whereabouts.

## Epilogue

of 1933). In others, the *suplente* system – whereby an elected member of congress can yield his seat temporarily to a *suplente*, or replacement, but then reassume the seat later – means that a minister can reclaim his legislative seat at any time he or she wishes. In Brazil, ministers will occasionally resign their ministerial positions just before an important vote in the assembly, resume their legislative seats, vote, and then resign their legislative seats and resume their ministerial posts again. When one adds the possibility that *suplentes* may be pliant, Brazilian ministers can effectively be considered members of the assembly. Other cases in which a similar *suplente* system is used include Bolivia, Colombia (Hartlyn 1994, p. 301), El Salvador, Honduras, Paraguay, Uruguay, and Venezuela. Finally, Latin American presidents can sometimes appoint recognized party leaders who are not themselves elected legislators but still bring with them assembly support. In Argentina, for example, there is a quite pronounced pattern of legislative party leaders “graduating” to ministerial positions once their service in the legislature comes to an end. For example, the two Peronist bloc leaders in the lower Chamber became interior minister and vice minister, and clearly were used in the executive branch for their political skills and connections in Congress. Something similar seems to occur in Chile. Latin American presidents, unlike their U.S. counterpart, can thus more often use cabinet appointments as prime ministers do, to build legislative support.

The U.S. president does not have the right to directly introduce legislation in either house of Congress. Even the president’s budget must be introduced by a member of Congress. In contrast, most Latin American chief executives have the power to introduce legislation directly, and some (in Brazil, Chile, Colombia prior to 1991, and Uruguay) have exclusive powers of introduction in designated areas. Latin American presidents’ powers of initiative are thus closer to those typically wielded by prime ministers.

The U.S. president does not have the right directly to determine the measures that Congress will consider, to accelerate bills pending on congressional calendars, or to otherwise affect the legislative agenda. In contrast, Brazilian, Chilean, Colombian, and Peruvian presidents can send “urgent” bills to Congress that take precedence over every other legislative matter; while in Ecuador, Paraguay and Uruguay presidential urgency powers are even greater – the president’s bill automatically becomes law if Congress does not formally reject it within a specified time period. Latin American presidents’ powers of agenda-setting pale in comparison to those

of the typical prime minister, who disposes of votes of confidence and (sometimes) other effective agenda-setting techniques, but they are nonetheless substantially greater than the U.S. president's.

All told, the separation of powers is much more thorough-going in the United States than it is in Latin America. The president can veto legislation, but he is not of much use in pushing legislation through the internal procedures of Congress. At best, he can "go public" and apply external pressure (Kernell 1986). The U.S. Congress' extraordinary abilities to initiate legislation have long been recognized. What is less well recognized is that the flip side of these abilities is the absence of executive powers to appoint legislators to the cabinet, initiate legislation, and control the congressional agenda.

In contrast, Latin American presidents can reach inside the assembly, appointing its members to his cabinet, directly proposing bills, and accelerating their consideration. Thus, when a president has good prospects of legislative support, cabinets are constructed to maintain that support, initiative powers and urgency provisions are used in concert with coalition partners, and the president relates to the congress more like a prime minister relates to a parliament.

***Imperial Prerogatives*** When the president has little legislative support, however, cabinets are filled with cronies and technocrats, initiative powers and urgency provisions are used on an ad hoc basis, and the president relates to congress more like English monarchs used to relate to their parliaments. In the United States, where Congress regularly takes the legislative initiative, presidents with weak legislative support – i.e., those facing a divided government – make greater use of the veto power and more often attempt to implement policy without congressional authorization (Cameron 2000; Tiefer 1994). A similar syndrome is visible in Latin America, but presidents there start with wider unilateral powers and seem prepared to push the envelope of constitutional action harder.

In addition to reactive powers such as the veto, presidents can also wield proactive or unilateral powers (Carey and Shugart 1998). First, presidents almost always have rule-making or interpretative authority. Second, many constitutions also allow the president wide authority to appoint ministers, judges, and other high officials, though their appointments often need congressional assent. Third, explicit legislative delegations of power to the executive expand many presidents' repertoire of action. In these cases, the

## Epilogue

legislature will generally set a specific task and timeline for the executive, retaining the right to review or change the president's decisions. Fourth, some presidents are constitutionally endowed with decree powers. These provisions can include the power to suspend civil liberties and other parts of the constitution in time of emergency, in addition to making policy via decree. Finally, there are what Carey and Shugart call "paraconstitutional" decree powers, which can allow the president to change laws by using the pen or sword.

While there are important exceptions (see the chapter by Siavelis), Latin American presidents have generally taken much more advantage of their delegated, constitutional, and paraconstitutional powers than have U.S. presidents. There are certainly cases of presidential unilateralism in the United States, but presidents in Latin America regularly make policy decisions almost unilaterally. Presidents in Bolivia, Brazil, Chile, Colombia, Ecuador, Paraguay, Peru, Uruguay, and Venezuela have tremendous advantages in structuring the national budget, as the legislatures there are constitutionally restricted from making significant changes (Baldez and Carey 1999; Domingo and Morgenstern 1997). Moreover, Latin American legislatures are hindered by a lack of time, resources, and experience. This combination of constitutional and organizational limits has converted many Latin American presidents into virtual budget dictators. If we take into account paraconstitutional powers as well, we find even more presidential impositions. The Mexican president has frequently used his paraconstitutional powers to move funds among budget categories, remove irreverent governors, and impose tremendous policy shifts almost overnight (e.g., nationalization and then re-privatization of the banks). In Argentina, the limited delegation of power to President Alfonsín to deal with their economic crisis was later interpreted by Menem (and the courts) as an almost open-ended and very difficult-to-check power to decree whatever type of law that Menem preferred not to send to the legislature. Similarly, Fujimori and Collor made extremely free use of decree powers.

### *Coalitional Presidents and Workable Assemblies*

Both dominant presidents and imperial presidents are more or less familiar types from the literature. What is more novel about the previous discussion is the characterization of presidents with intermediate levels of political strength in the assembly. Given the appropriate institutional

strengths, presidents with supportive but not subservient majorities in the assembly can become what we have called coalitional presidents, integrating themselves into the legislative process of the assembly to a much greater degree than is typical in the United States. The corresponding assembly type, which is brought into some degree of partnership in the policy-making process, we call workable.

The coalitional president and the workable assembly are important and understudied types. We know a lot about Latin American failures – the dominant presidents who have managed to neutralize democratic checks and balances by virtue of their control over elections and the future career prospects of legislators; and the imperial presidents who emerge from the dangerous combination of political weakness and institutional strength. But we know much less about how these systems work when presidents attempt to forge coalitions with assembly actors. While the other modalities may meet a minimal definition of democracy, they call into question the ideals of functioning checks and balances and limited executives. In this section, we consider further some aspects of the more clearly democratic coalitional/workable pairing by comparing the Latin American experience to that in the United States and Europe.

*Latin American Systems as Intermediate between Pure Presidentialism and Pure Parliamentarism* The intermediate status of executive–legislative relations in Latin America can be seen by first sketching the main features of two polar opposites that we shall call pure parliamentarism and pure presidentialism.

In pure parliamentary systems, the head of government is chosen by, and can be dismissed by, the assembly. The second of these defining characteristics – the possibility of dismissal – leads to two corollary features of the legislative process and party system. First, because the government can be dismissed if it loses a vote of confidence, parties put a high premium on, and are generally successful at securing, unity in their voting behavior on the floor. Second, in order to attain and maintain the high levels of voting discipline required to avoid losing votes of confidence, parties in the majority coalition put a premium on, and are generally successful at securing, control of the legislative agenda in the assembly (Doring 1995).<sup>8</sup>

<sup>8</sup> In some parliamentary systems, such as Ireland, France, and the United Kingdom, the government's control over the parliamentary agenda is clearly established in the standing orders. In other cases the government's powers are less clearly delineated, but the govern-

## Epilogue

In terms of Cox and McCubbins' (1993) terminology, these two points can be rephrased as saying that legislative parties in parliamentary systems have strong incentives to be unified as "floor voting coalitions" and can help to ensure such unity by also acting as "procedural coalitions" (Cox and McCubbins 1993). The first point has been widely noted in the literature; the second – which stresses that protecting members of the majority coalition from embarrassing votes, scheduling votes at the politically right times, and other abilities conferred by agenda power are important in preventing open disagreements within the majority coalition – has not.

The first defining feature of parliamentarism – the choice of the head of government by the assembly – has a profound impact on the organizational structure of political parties. In particular, parliamentary parties are fully integrated with the executive personnel in the party, whether ministers or shadow ministers. There is nothing like the separation visible in the United States, with one organization for the House of Representatives, one for the Senate, and one for the presidential wing of the party. Parliamentary parties thus unify the executive and assembly, reflecting both the greater confidence that the legislative rank-and-file can have in leaders that they choose (and who are dependent for their continuance in power on the aggregate electoral success of their followers) and the necessity to organize strongly in support of the executive. The natural consequence, in combination with the points made previously, is that ministers are often given substantial control over the legislative agenda of the assembly. Executive, as opposed to purely legislative, actors exert the agenda power.

A very different outcome ensues in a pure presidential system such as the United States. First, the head of government cannot be dismissed by the assembly (outside of impeachment proceedings). Thus, there is less need for voting cohesion on the floor and, hence, less need for strong agenda powers to support that cohesion. Second, the head of government is not chosen by the assembly and does not depend for continuance in office on the electoral success of his supporters in the assembly. Those supporters thus have need of their own leaders, and their own organization. With reference to Schlesinger's (1966) notion of party nuclei – the organizations devoted to securing particular offices – the separate election of the president naturally gives rise to two party-nuclei-in-government, one for the Congress and one for the president, where there had been only

ment nonetheless seems able to use its majority to dominate the agenda. Perhaps the case that least conforms to this generalization is Denmark (Doring 1995).

one in the parliamentary case.<sup>9</sup> Finally, putting these two points together, the natural locus of agenda power in a pure presidential system is within the congress. It will not be the president or his ministers who wield agenda power. Rather, it will be the leaders of the congressional parties – especially the majority – who wield it.<sup>10</sup>

***Coalitional Presidents: Latin America and the U.S. Model*** Latin American polities do not differ much from the pure presidential system in terms of its two defining characteristics. Although the assembly in some Latin American systems (particularly Bolivia) has a substantial say in the selection of the president, in most the involvement is even less than it is in the U.S. case (where the possibility of presidential contests being decided by Congress exists). Similarly, although the theoretical possibility has existed in a few Latin American systems of removing the president other than by impeachment, in practice this has not amounted to much.

The real differences between the U.S. and Latin American styles of presidentialism – at least as regards the level of executive integration with the legislature – are that (1) ministers cannot sit in the assembly in the United States and typically are not appointed with an eye to building assembly support, whereas they can often sit in the assembly (practically speaking) in Latin America and are often appointed with an eye to solidifying assembly support; (2) ministers and the president wield important powers in setting the assembly's internal legislative agenda in Latin America but not in the United States; and (3) the integration of the executive and legislative branches of the parties is often greater in Latin America (e.g., Costa Rica, Uruguay, and Venezuela) than in the United States.<sup>11</sup>

These differences strongly affect the locus of political power, setting the Latin American legislatures in a category separate from the U.S. (ideal-

<sup>9</sup> The strength of the incentive to create separate party nuclei would appear to depend on the details of electoral law: Is the presidential election concurrent with the legislative? Is there a fused vote? And so on.

<sup>10</sup> Moreover, the purpose of agenda power will not be to help keep a government, since governments cannot fall on congressional votes. Instead, it will be to help establish a record on which the party can run in the next election (cf. Cox and McCubbins 1993).

<sup>11</sup> Other differences, noted previously, include the strength of the president's "imperial prerogatives."

## Epilogue

typical) model. While certainly not irrelevant to the policy process, Latin American legislatures initiate less legislation than does the U.S. Congress, and their amendments are generally less weighty (see the chapters by Siavelis and Casar). Further, though in his chapter Ames shows the recalcitrance of the Brazilian Congress, the success rates for executive initiatives is generally quite high in Latin America (over 90% in Argentina, Chile, and Mexico), as contrasted with a low success rate for bills that start in the legislature. Clinton, on the other hand, won only 36.2 percent of his congressional battles in 1995.<sup>12</sup>

***Coalitional Presidents: Latin America and the Eighteenth-Century British Model*** Of the three features suggested previously as most clearly distinguishing Latin American from North American presidentialism, the value of ministerial appointments in securing support in the assembly is the most important. This feature, combined with the sometimes great power of the president, reminds one of the eighteenth-century British model of president-parliamentarism (in which the king played the role of president).<sup>13</sup> Although the British were famously fond of praising the balance of their Constitution, it was a balance that both king and Commons often sought to redress to their own advantage.

The king, saddled by past beheadings and constitutional settlements with a powerful and independent assembly, continually sought to control it by two methods entirely familiar to Latin American presidents: influencing legislative elections and “buying” support in the assembly with offers of employment and other favors. Foord reviewed some of the techniques of royal influence as follows:

Government funds were used to subsidize the ministerial press, to provide pensions, to purchase close boroughs, and to carry on such electioneering devices as parades, free beer for electors, and the patronising of local tradesmen. Patronage provided jobs for electors, employment for parliamentary placemen, and positions for the friends, relatives, and dependents of those who could supply the

<sup>12</sup> U.S. presidents cannot formally introduce legislation, but *Congressional Quarterly* does track presidential success rates. While success rates above 70% have been common, every president since Nixon, with the exception of Carter, has had success rates in the 50s or lower for one or more years.

<sup>13</sup> Following Shugart and Carey (1992), in president-parliamentary regimes the president has unilateral appointment and dismissal power, but cabinets must also maintain parliamentary confidence.

government with votes in parliament and the constituencies. Honours attracted the “many who cannot be caught by the bait of covetousness [but] are caught by the bait of vanity.” . . . Many of the most profitable contracts were under the management of the treasury, the headquarters for the distribution of government patronage, and the treasury’s practice was to award contracts largely on the basis of political “recommendations.” . . . Financiers sought seats in Parliament, and when government credit was sound, they eagerly applied for a “slice” of governmental loans. . . . [M]ore than eighty members of lords and commons rented royal property [needless to say, on favorable terms]. (Foord 1957, pp. 488, 495, 496)

From the Restoration (1660) through to the early decades of the nineteenth century, the House of Commons was constantly on guard against these royal tactics (Kemp 1957). To circumscribe the crown’s ability to influence elections, the Commons sought to regulate the power of dissolution, the conduct of elections, the right of peers and crown officials to vote or interfere in elections, and even the right of the crown to participate in the market for the sale and purchase of rotten boroughs. To circumscribe the crown’s ability to “buy” its members, the Commons passed a long parade of “place bills,” forbidding those who had accepted crown offices from sitting in the legislature (or requiring them to resign and submit to reelection).

The king was not the only one actively seeking to redress the balance of the Constitution in his favor. Ministers increasingly parlayed their role as conveyors of votes in the Commons, and their obligation to countersign all royal acts, into political dominance. The king fades increasingly from the political scene until, by the nineteenth century, premier-presidentialism had given way to pure parliamentarism.

The inherent tension in eighteenth-century Britain’s balanced Constitution between leaders of the assembly (attempting to force their way into the ministry and force the king to take their advice) and the king (attempting to control the assembly directly, so as to obviate the need for appointing assembly leaders as ministers) is similar to tensions observable in many Latin American cases. Consider two examples: Mexico and Peru.

The Mexican president used the same basic strategy as the British king but succeeded where the king failed. As Weldon (this volume) describes, both the electoral incentives of assembly members and their postassembly employment opportunities came increasingly to be dominated by the president until, eventually, an independent assembly ceased to exist.

The Peruvian Constitution of 1933 seems to have attempted to recreate the British polity in the immediate aftermath of the Glorious Revolution.

## Epilogue

tion. It required that all official acts be countersigned by a minister and that ministers resign if censured by the assembly; at the same time, it explicitly allowed ministers to sit in the assembly. These constitutional stipulations did not, however, lead to any noticeable movement toward parliamentarism in Peru. The reason, suggested by an acute analysis by Needler, seems to be precisely the failure of Peruvian legislative elites to mount effective defenses to Peruvian presidents' pursuit of the same two strategies pursued by the British king and the Mexican president (Needler 1965). A key difference between most of Latin America and Britain is that civilian control of the military has not been established in the former cases but had in the latter case. But the central civilian tension in the systems is similar. Moreover, one does not have to be too Whiggish to argue that the best outcomes for these systems would entail either maintaining the balance between the executive and the legislative powers, or redressing it in favor of the assembly (moving more toward premier-presidentialism).

## Conclusion

In this chapter we have argued that Latin America's executive–legislative relations typically take the form of a constitutionally distinctive bilateral veto game in which the president moves first, proposing most of the important legislation, but knows that the assembly will then have a chance to react. We have stressed three points. First, although Latin American assemblies are primarily reactive, this does not mean that they are necessarily impotent or unimportant. Presidents must anticipate what the assemblies that they face will accept and thus legislators have influence through anticipated reactions. It is only when the president has established political mastery over the assembly, as until recently in Mexico, that the assembly ceases to be a significant player. Second, to the extent that Latin American presidents do continually anticipate legislative reactions, their strategies vary depending on the type of legislature that they face. But Latin American executives have a unique combination of institutional powers, with both unilateral abilities (such as some forms of decree) and integrative abilities (such as urgency motions). Depending on the lay of the political land, they can choose either to end-run the assembly or to join it. In either decision, they are able to go much further than an American president would be able, producing a distinctive oscillation in Latin American executive–legislative relations. Third, Latin executives' combination of first-mover status with a distinctive set of institutional

powers generates results, in terms of executive–legislative relations, that are often intermediate between those expected in the United States, with its more rigorous separation of powers, and in Europe, with its more complete fusion of powers.